

FIRST INFORMATION REPORT

(Under Section 173 BNSS)

1. **District:** Chennai **PS:** ACB Chennai
Year: 2024
FIR No.: RC0322024A0015 **Date:** 25/10/2024

2. **Acts & Sections:**

Acts	Sections	R/W Section
IPC	120(B)	420,468 and 471 IPC
PC Act-1988 (As amended in 2018)	7	
PC Act-1988 (As amended in 2018)	8	
PC Act-1988 (As amended in 2018)	12	

3. **Suspected offences:** Criminal Conspiracy, Forgery, Cheating, Criminal Misconduct, Abetment of Offence under PC Act

(a) **Occurrence of offence:**

Day: **Time Period:**
From Date: 2019 **To Date:** 2020

(b) **Information Received at PS:** ACB Chennai

Date:

(c) **General Diary Reference:**

Entry No.: 7
Date: 25/10/2024 **Time:** 20:21:34

4. **Type of Information:** Others

5. **Place of Occurrence:** Chennai Port Trust, Chennai

(a) **Direction & distance from PS:** N/A

Beat No.: N/A

(b) **Address:**

Plot No.: **Area:**
City: **Pin:**
State: **District:**

(c) **In case, outside the limit of this Police Station, then**

Name of PS: **District:**

6. **Complainant / Informant:**

Complainant 1

(a) **Name:** Mr. S Murali Krishnan IDAS

(b) **Father's/Husband's Name:**

(c) **Date/Year of Birth:**

(d) **Nationality:** INDIAN

(e) **Passport:**

Passport No.	Date Of Issue	Place Of Issue
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(f) **Occupation:** Chief Vigilance Officer

(g) **Address:**

Plot No	Area	City	State	District	Pin
Chief Vigilance Officer	Chennai Port Authority	Chennai	Tamil Nadu	Chennai	600001

7. **Details of known/suspected/unknown accused with full particulars:**

Accused 1

Name: Mr.Pugalendi K (1), **Designation:** The then Sr. Dy. Director, **Department:** Madras Port Trust, **Ministry:** Ministry of Shipping

Address:

Accused 2

Name: Mr.S. Raghul Chakravarthy(2), **Designation:** Proprietor of M/s RS Enterprises

Address:

No. 11, Geethalaya Cottage, Gayathri Nagar, Ayapakkam, Chennai, Chennai, Tamil Nadu

Accused 3

Name: Mr.M. Ludwin Rajiv(3), **Designation:** Working Partner in M/s RS Enterprises

Address:

Flat No. 201, C Block 2nd Floor, KG Signature City, Maduravoyal, Chennai, Chennai, Tamil Nadu

Accused 4

Name: Mr.R. Madhan Kumar(4), **Designation:** Working Partner in M/s R S Enterprises

Address:

No. 22/28, Ammaiappan Lane, Royapettah, Chennai, Chennai, Tamil Nadu

Accused 5

Name: Mr.N. Mydheen Raja(5), **Designation:** Signing Authority Mediator in M/s R.S Enterprises

Address:

No. 189, Circle Office Street, Thengalam Road, Naranammal Puram, Sankar Nagar, Tirunelveli, Tirunelveli, Tamil Nadu, 627357

Accused 6

Name: Mr.Rajalingam (6), **Designation:** Mediator - M/s R.S Enterprises

Address:

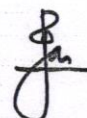
No. 11-7 / 1-7, East Street, Sendankadu, Thanjavur, Thanjavur, Tamil Nadu, 614901

8. Reasons for delay in reporting by the complainant/informant:

NIL- No Delay

9. Particulars of properties stolen:

Item Name	Age of Property	Estimated Value (in INR)
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10. Total value of property stolen:**11. Inquest Report/U.D. Case No., if any:****12. First information contents:**

A complaint vide Letter No. V8/0692/2022/Vig dated 17.11.2022 of Shri. S. Murali Krishnan, IDAS, Chief Vigilance Officer, Chennai Port Authority, Chennai against Shri. K. Pugalendi, Sr. Dy. Director, Research (P&R Cell), Traffic Department, Chennai Port Trust, Chennai addressed to The Head of Branch, Central Bureau of Investigation, Anti-Corruption Branch - Chennai, 3rd Floor, Shasthri Bhavan, 26, Haddows Road, Nugambakkam, Chennai was received on 18.11.2022.

2. It is alleged in the complaint that, a letter dated 06.09.2022 was received by Chief Vigilance Officer, Chennai Port Authority, Chennai from Shri. Raghul Chakravarthy, Proprietor of M/s R.S. Enterprises, Ayapakkam, Chennai - 77 against Shri. K. Pugalendi, Sr.Dy.Director, Research (P&R Cell), Traffic Department, Chennai Port Authority, Chennai alleging that Shri. K. Pugalendi had demanded bribe and received a sum of Rs.70,00,000 /- (Seventy Lakh only) to award Tender related to "disposal of 4 Tugs with spares and Annam (Oil Recovery Vessel) together for a worth of Rs.3 Crores to be tendered at Ch PT to M/s.RS Enterprises".

3. It is mentioned in the complaint that, the Vigilance Department, Chennai Port Authority, Chennai conducted a Preliminary Enquiry on 08.09.2022 against Shri. K. Pugalendi, Sr.Dy.Director, Research (P&R Cell) to investigate the allegations contained in the complaint received from Shri Raghul Chakravarthy, Proprietor of M/s. RS Enterprises and it has revealed that during the year 2019 and 2020, Shri Raghul Chakravarthy along with Shri Madan Kumar, Shri Ludwin Rajiv, Shri Rajalingam, and Shri Mydheen Raja had paid the bribe of Rs.70,00,000/- to Shri. K. Pugalendi as commission for award of tender for 4 tugs with spares and 'Annam' (Oil Recovery Vessel). Since, there is a strong prima-facie case against Shri. K. Pugalendi, who has indulged in serious misconduct.

4. Further, during the investigation by the Vigilance Department, Chennai Port Authority, it has been observed that some outsiders and other Govt. Agencies are also involved in the allegations made by the complainant.

5. Based on the allegations cited above, a Preliminary Enquiry was conducted by CBI by obtaining section 17A of PC Act, 1988 (as amended in 2018) to enquire in to the allegations levelled against Shri. K. Pugalendi, Sr. Dy. Director, Research, (P&R Cell), Chennai Port Trust, Chennai in the year 2023 and a request was submitted before the Government of Tamil Nadu, Home (Citizenship) Department to accord consent for registration of case and the Government of Tamil Nadu accorded consent vide G.O. (2D) No.294 dated 25.09.2024.

6. Further a request was submitted before DoP, CBI, Head Office, New Delhi for according permission for Notification under Sec 5 of the DSPE Act, 1946 and the said notification vide No.228/88/2024-AVD-II dated 24.10.2024 was received through official mail for registration of regular case.

7. Therefore, the above information, prima facie, discloses offences under U/s. 120B r/w 420, 468 & 471 of IPC and offenses U/s. 7,8 and 12 of PC Act 1988(as amended in 2018) committed by the accused Shri. K. Pugalendi, Sr. Dy. Director, Research (P&R Cell), Traffic Department, Chennai Port Authority, Chennai, Shri Raghul Chakravarthy, Shri Ludvin Rajiv, Shri Madhan Kumar, Shri Mydheen Raja and Shri Rajalingam of M/s R.S Enterprises. Hence, a Regular Case is registered and entrusted to V.Jayabharathi, Inspector, CBI, ACB, Chennai for investigation.

The original complaint dated 17.11.2022 received from Shri. S. Murali Krishnan, Chief Vigilance officer, Chennai Port Trust, No.1, Rajaji Salai, Chennai alongwith enclosures copy of the consent obtained from Govt of Tamil Nadu vide GO(2D).No.294 dated 25.09.2024. and the DoPT notification vide No.228/88/2024-AVD-II dated 23.10.2024 under sec 5 of the DSPE Act 1946 are enclosed herewith, may be read as part and parcel of this FIR.

13. Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2:

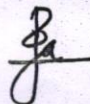
(1) Registered the case and took up the investigation: Yes

OR

(2) Directed

Name of IO:

V Jayabarathi



Rank:

INSPECTOR (ACB Chennai)

No:

168084

to take the investigation

OR

(3) Refused investigation due to:

OR

(4) Transferred To PS:

District:

on point of jurisdiction.

Attached documents:

Document name

Complaint

Approval 6 and 5

Preliminary Investigation Report

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant / informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of the complainant/informant

Signature of Officer
in-charge Police Station

Name: P MURUGAN

Rank: DY. INSP. GENERAL OF POLICE (ACB
Chennai)

15. Date and time of dispatch to the Court:

To

To Hon'ble II Additional District Judge Cum
Special Judge for CBI Cases, Coimbatore

P. MURUGAN, IPS
Dy. Insp. Genl of Police
HOB CBI ACB Chennai

On 26.10.2024 at 11.00 hrs.